

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

v.

CASE NO.: 2017 CC 3814

ROSARIO ALANIZ and
ANY UNKNOWN TENANT(s)

Defendant(s).

**DEFENDANT, ROSARIO ALANIZ'S ANSWER, AFFIRMATIVE DEFENSES, NOTICE
OF PLEA FOR ATTORNEY'S FEES, AND MOTION TO DETERMINE RENT**

COMES NOW, Defendant, ROSARIO ALANIZ (hereinafter "ALANIZ"), and responds
to the Complaint filed in the above-captioned matter as follows:

ANSWER

Count I

1. Admitted for jurisdictional purposes only.
2. Admitted.
3. Admitted.
4. Denied.
5. Admitted.
6. Admitted.
7. Denied.
8. Denied.
9. Denied.
10. Denied.
11. Denied.

12. Denied.
13. Admitted that Defendant has not vacated. The remainder is denied.
14. Admitted that Plaintiff has refused to accept some rent, denied as to the all other allegations.
15. Denied.
16. Admitted only that Fla. Stat. § 723.068 provides for a prevailing attorney fee provision.
17. Admitted

All allegations not specifically admitted are denied.

Count II

18. Admitted for jurisdictional purposes only.
19. Defendant re-alleges the answers contained within paragraphs 1 through 17.
20. Denied.
21. Denied.
22. Denied.

All allegations not specifically admitted are denied.

Count III

23. Admitted for jurisdictional purposes only.
24. Defendant re-alleges the answers contained within paragraphs 1 through 22.
25. Admitted.
26. Denied.
27. Denied that Plaintiff is entitled to enforce its lien by judicial sale.
28. Denied.

All allegations not specifically admitted are denied.

AFFIRMATIVE DEFENSES TO ALL COUNTS

First Affirmative Defense

The Plaintiff has paid or has attempted to pay all rent due and owing, along with all other financial obligations required. Any appearance of default or delinquency in rental payments or other monies has been caused entirely by the Plaintiff. The Plaintiff should therefore be precluded for evicting Defendant, based on its own conduct. In addition, any rental amounts alleged by the Plaintiff that are in excess of base rent, including, but not limited to, late charges or double rent are not allowed by law and should not be included in a damage amount.

Second Affirmative Defense

The Plaintiff failed to provide or deliver written notice/demand. Pursuant to Fla. Stat. § 723.061(1)(a), written demand must be made by the Plaintiff prior to bringing the eviction proceedings. Pursuant to Fla. Stat. § 723.061(4), any notice to the Defendant must be posted on the premises and sent by certified or registered mail, return receipt requested, and that delivery is deemed to occur five days after the date of the postmark.

Third Affirmative Defense

The Plaintiff has waived its right to eviction based on conduct which infers the relinquishment of a known right. Though Defendant, adamantly denies any violation of the "Rules and Regulations", for the sake of this defense, any violations claimed by the Plaintiff to be the cause of this eviction proceeding have been waived by the Plaintiff.

Fourth Affirmative Defense

The Plaintiff brings this action with unclean hands and in bad faith. Pursuant to Fla. Stat. § 723.021, every party to a dispute is obligated to act in good faith and fair dealings. Upon

information and belief, Defendant alleges that an agent of the Plaintiff, has personal issues with the Defendant and is using Fla. Stat. 723, in bad faith to cause harm on Defendant. This defense is not limited to the allegations above, regarding the bad faith on the part of the Plaintiff.

Fifth Affirmative Defense

Pursuant to Fla. Stat. § 723.061(c), no properly promulgated rule or regulation may be arbitrarily applied and used as a ground for eviction. Again, Defendant adamantly denies any violation of the “Rules and Regulations”, however, for the sake of this defense, Defendant alleges the Plaintiff is arbitrarily enforcing the park rules and regulations in violation of Fla. Stat. § 723.061(c).

Sixth Affirmative Defense

The Plaintiff has failed to meet the condition precedents prior to initiating this proceeding.

Seventh Affirmative Defense

The principle of Equitable Estoppel prevents the Plaintiff with the right to evict based on the conduct of the Plaintiff which was relied on to the detriment of Defendant, including, but not limited to, Plaintiff attempting to assist Defendant with the application for residency.

NOTICE OF PLEA FOR ATTORNEY’S FEES

Defendant(s) have had to hire the undersigned counsel to defend this action. Pursuant to Fla. Stat. § 723.068, if Defendant prevails in this matter, Defendant is entitled to have her reasonable attorney’s fees and costs paid by Plaintiff. Defendant demands attorney’s fees, costs, and expenses in defending this action.

MOTION TO DETERMINE RENT OR OTHER MONIES

The Defendant has at all times material to this claim paid or has attempted to pay the appropriate amount of rent at the beginning of each month. Defendant states that any rent or other monies the Plaintiff claims is due and owing is solely caused by Plaintiff.

Defendant demands strict proof of amounts due and owing, and requests Plaintiff to specifically explain and renderer proof of any amounts due and owing.

As the Complaint does not specify an current amount of rent that is due, the Defendant request that a hearing be held to determine how much rent, if any, is owed or need be deposited into the court registry to maintain his defenses.

To avoid the time and cost for a hearing to determine rent, Defendant would agree to stipulate with Plaintiff as to the proper amount and place same in the Court Registry.

WHEREFORE, the Defendant, ALANIZ, for the reasons stated above, requests that this Court hold a hearing if a stipulation cannot be reached between the parties to determine how much rent, if any is owed.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of has been furnished via email to William C. Price III, Esq., 522 12th Street West, Bradenton, FL 34205, wcprice@wcpriceiipa.com, this 16th day of October 2017.

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